

25VECV00670 25VECV00670

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-07-27

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2C107%2C07%2F27%2F2026

Source SHA-256: 59b82e1c0dd3395671106a27b19ce29e9589039db5c9de2051dcfd6dc09b5cce

Case Number: 25VECV00670 Hearing Date: July 27, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Robert Ruiz,

Plaintiff,

v.

Viva Medicare Trans, Inc.

)))

Defendant.

Case Number Department

25VECV00670 107

COURT'S [TENTATIVE]

ORDER RE:

Motion to Enforce

Settlement

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

This

is an employment dispute. On February 5, 2026, Plaintiff Robert Ruiz ("Plaintiff") filed a complaint against Defendants Viva Medcare Trans, Inc. and Does 1 to 10, alleging causes of action for: (1) misclassification as independent contractor (Labor Code section 226.8); (2) failure to pay overtime wages (Labor Code sections 510, 1194); (3) failure to provide meal periods (Labor Code sections 226.7 and 512); (4) failure to provide rest periods (Labor Code section 226.7); (5) failure to reimburse business expenses (Labor Code section 2802); (6) failure to provide accurate itemized wage statements (Labor Code section 226); (7) failure to pay all wages due upon termination (Labor Code sections 201-203); and (8) unfair business practices (Bus. & Prof. Code section 17200, et seq.)

On

June 15, 2026, Defendant Viva Medcare Trans, Inc. ("Defendant") filed a motion to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6 (the "Motion"). On July 14, 2026, Plaintiff filed an opposition. On July 20, 2026, Defendant filed a reply.

II.

LEGAL

STANDARD

Code

of Civil Procedure section 664.6, subdivision (a) states:

If parties to pending

litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss

the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

III.

DISCUSSION

Defendant

moves to enforce a confidential settlement and release agreement entered into by Plaintiff and Defendant on January 15, 2025, pursuant to Code of Civil Procedure section 664.6. (Motion pp. 1-2.)

In

opposition, Plaintiff cites Kirby v. Southern California Edison Co. ("Kirby") (2000) 78 Cal.App.4th 840 and argues a section 664.6 motion is not the proper procedural mechanism to enforce a settlement agreement entered into before the complaint was filed. (Opposition p. 2.)

In

reply, Defendant cites no authority suggesting a motion brought under Code of Civil Procedure 664.6 is proper here, but states:

Whatever the proper

procedural label, the underlying release is enforceable on the terms set out above, and Defendant respectfully requests that the Court enforce it on this record. To the extent the Court concludes that a differently captioned motion is required to reach that result, Defendant requests leave to promptly renew this showing in that form.

(Reply

p. 4.)

Code

of Civil Procedure section 664.6 is authorized only when the agreement is made while the litigation is pending. (Kirby, supra, 78 Cal.App.4th at p. 845.) "There can be no litigants until there is a case on file to litigate. And no one can stipulate to a settlement of 'the case' unless and until that case has been filed." (Id. at pp. 844-845.)

Plaintiff

filed the complaint on February 5, 2025. Defendant seeks to enforce a settlement entered into on January 15, 2025. (Motion pp. 1-2; Petrosian Declaration ¶¶ 4-5.) Thus, Defendant seeks to enforce a settlement agreement entered into before this litigation was pending. Code of Civil Procedure section 664.6 is inapplicable here.

Defendant

requests the court grant it leave to renew its motion brought under a different procedural label. (Reply p. 4.) The court here concludes only that a motion brought under Code of Civil Procedure section 664.6 is improper here. The court takes no position on what motion is required or permitted to reach Defendant's desired result.

IV.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: July 27,

2026 _____ Hon. Eric Harmon

Judge of the Superior Court